

2:00 PM

LINE: 4

25-CIV-06878

FRANK KAUL VS. AFONSO INFANTE, ET AL

FRANK KAUL
AFONSO INFANTE

PRO SE
PRO SE

DEFENDANT ANH TRUONG'S DEMURRER TO VERIFIED FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Defendant Anh Truong's Demurrer to Plaintiff Frank Kaul dba Swift Legal's Verified First Amended Complaint ("FAC") is **SUSTAINED WITHOUT LEAVE TO AMEND**, as follows:

When a court sustains a demurrer with leave to amend, the scope of leave ordinarily is limited to curing defects in the causes of action to which the demurrer was sustained. A plaintiff may not add a new cause of action without obtaining permission to do so unless the new claim falls within the scope of the order granting leave to amend. (*Community Water Coalition v. Santa Cruz County Local Agency Formation Com.* (2011) 200 Cal.App.4th 1317, 1329; *People ex rel. Dept. Pub. Wks. v. Clausen* (1967) 248 Cal.App.2d 770, 785-786.) In the original Complaint, Plaintiff asserted claims against Defendant Truong, including a claim under the federal Racketeer Influenced and Corrupt Organizations Act ("RICO"). On March 5, 2026, the Court sustained Defendant Truong's demurrer "**as to all claims against Defendant Truong, WITH LEAVE TO AMEND.**" (Mar. 5, 2026 Minute Order, p. 6.) The FAC does not replead a RICO claim. Instead, it asserts against Defendant Truong only a new Fourth Cause of Action for Aiding and Abetting Fraud. (FAC, ¶¶ 56-67.) The Court's prior order did not authorize Plaintiff to add a new cause of action. The Fourth Cause of Action therefore exceeds the scope of the leave granted. Accordingly, Defendant Truong's Demurrer to the Fourth Cause of Action is **SUSTAINED WITHOUT LEAVE TO AMEND.**

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Defendant Truong shall prepare a proposed order repeating this tentative ruling verbatim, pursuant to California Rules of Court, rule 3.1312, and San Mateo County Superior Court Local Rule 3.403(b)(iv), and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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LINE: 5

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DEFENDANT ANH TRUONG'S RENEWED MOTION FOR SANCTION

TENTATIVE RULING:

For the reasons stated below, Defendant Anh Truong's Renewed Motion for Sanctions is DENIED. The challenged allegations present pleading and factual disputes appropriately addressed by demurrer, not sanctions. Defendant has not shown subjective bad faith under Code of Civil Procedure 128.5 or an objectively frivolous filing under section 128.7. Discovery-related complaints are not sanctionable under those statutes, and the requested monetary, issue, evidentiary, and terminating sanctions are unsupported and disproportionate. The motion is **DENIED**.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare a proposed order repeating this tentative ruling verbatim, pursuant to California Rules of Court, rule 3.1312, and San Mateo County Superior Court Local Rule 3.403(b)(iv), and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.